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Case Number: BC386363 Hearing Date: September 3, 2026 Dept: 509

Wells Fargo Bank NA v. Olympic National Bancorp, et al.

MOTION TO VACATE DEFAULT JUDGMENT

MOVING PARTY: Defendant/Judgment Debtor, Bruce A. Hayes

RESPONDING PARTY(S): Plaintiff/Judgment Creditor, Wells Fargo Bank, N.A.

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

On February 28, 2008, Plaintiff Wells Fargo Bank, N.A. (Plaintiff) filed this action.

Around June 10, 2008, defendant Bruce A. Hayes (Defendant) defaulted.

Around October 1, 2008, judgment was entered against Defendant.

On August 11, 2026, Defendant filed the instant motion to vacate the judgment and set aside the default. Plaintiff opposed.

TENTATIVE RULING (REVISED):

Defendant's Motion to Vacate Default Judgment is DENIED WITH PREJUDICE.

Plaintiff is ordered to give notice.

DISCUSSION:

Motion To Vacate and Set Aside Default Judgment

I. Legal Standard

Code of Civil Procedure, section 473(d) provides that “[t]he court may, upon motion of the injured party, or its own motion, correct clerical mistakes in its judgment or orders as entered, so as to conform to the judgment or order directed, and may, on motion of either party after notice to the other party, set aside any void judgment or order.” “[I]nclusion of the word “may” in the language of section 473, subdivision (d) makes it clear that a trial court retains discretion to grant or deny a motion to set aside a void judgment. [Citation.] However, the trial court has no statutory power under section 473, subdivision (d) to set aside a judgment that is not void.” (Kremerman v. White (2021) 71 Cal.App.5th 358, 369.) “Generally, defendants have six months from entry of judgment to move to vacate. [Citation.] But, if ‘the judgment is void on its face, then the six month limit set by section 473 to make other motions to vacate a judgment does not apply. [Citation.]” (Id. at p. 369-70.)

“A judgment ‘is considered void on its face only when the invalidity is apparent from an inspection of the judgment roll or court record without consideration of extrinsic evidence.’ [Citation.] When a default judgment has been taken, the judgment roll consists of ‘the summons, with the affidavit or proof of service; the complaint; the request for entry of default ..., and a copy of the judgment.’ (§ 670, subd. (a).) If the invalidity can be shown only through consideration of extrinsic evidence, such as declarations or testimony, the order/judgment is not void on its face. [Citation.]” (Kremerman v. White, supra, 71 Cal.App.5th at p. 370.)

II. Analysis

Defendant now moves to set aside a default and vacate a default judgment entered against him nearly eighteen years ago. Defendant moves under Code of Civil Procedure, section 473.5 and 473(d) on grounds that service of process of the complaint in 2008 was inadequate. Plaintiff opposed.

1. This Motion is Untimely Under Code Civil Procedure, Section 473.5

A motion brought under Code of Civil Procedure, section 473.5 must be brought within two years of the entry of default judgment.

When service of a summons has not resulted in actual notice to a party in time to defend the action and a default or default judgment has been entered against the party in the action, the party may serve and file a notice of motion to set aside the default or default judgment and for leave to defend the action. The notice of motion shall be served and filed within a reasonable time, but in no event exceeding the earlier of: (i) two years after entry of a default judgment against the party; or (ii) 180 days after service on the party of a written notice that the default or default judgment has been entered.

(Code Civ. Pro. §473.5, subd. (a).)

Judgment was entered in 2008 which is nearly eighteen years ago. Relief is therefore unavailable under Section 473.5.

2. This Judgment is Not Void

A judgment or order is “void” only “when the court entering that judgment lacked jurisdiction in a fundamental sense due to the entire absence of power to hear or determine the case resulting from the absence of authority over the subject matter or the parties.” (People v. N. River Ins. Co. (2020) 48 Cal.App.5th 226, 233 [citations omitted].)

Defendant argues that the Court did not have personal jurisdiction over him as the service of the summons and complaint was insufficient. Defendant argues that “[b]ecause substitute service was attempted at an address that was not Defendant’s dwelling house, usual place of abode, usual place of business, or usual mailing address, the purported service failed to

comply with California Code of Civil Procedure § 415.20.” (Mot. at p. 4:15-17.)

Code of Civil Procedure, section 415.20 states:

If a copy of the summons and complaint cannot with reasonable diligence be personally delivered to the person to be served . . . a summons may be served by leaving a copy of the summons and complaint at the person’s dwelling house, usual place of abode, usual place of business, or usual mailing address other than a United States Postal Service post office box, in the presence of a competent member of the household . . . at least 18 years of age, who shall be informed of the contents thereof, and by thereafter mailing a copy of the summons and of the complaint by first-class mail.

(Code Civ. Proc., § 415.20(b).)

First, Defendant argues he worked remotely for Platinum Capital Group Financial Inc. (Platinum) located at 3500 N. Sepulveda Blvd. Suite E, Manhattan Beach, CA 90266. He argues that since he was never in the office physically, the service was improper at that address. However, Section 415.20 does not require a physical presence in a “usual place of business.”

Second, Defendant argues that he stopped working for the Platinum in November 2007. When service was effectuated in April 2008, he had already begun working for a different entity at a different location. (Hayes Supp. Decl. ¶¶6-7.) Defendant argues that service at Platinum’s offices is therefore insufficient as it was not his current place of business.

However, “Evidence Code section 647 provides that a registered process server’s declaration of service establishes a presumption that the facts stated in the declaration are true.” (Rodriguez v. Cho, (2015) 236 Cal.App.4th 742, 750, referencing American Express Centurion Bank v. Zarah, (2011) 199 Cal.App.4th 383, 390.) Guillermo Verjan was the register process server and his declaration is given a presumption of truth. (Hayes Decl. Exh. C.) There, Guillermo Verjan attested that the individual who was served told him that Defendant was “not in” and “out of office at this time.” (Ibid.) Indeed, such statements indicate that Defendant was in that office albeit out at the time of service. (See Lee v. Yan (2025) 115 Cal.App.5th 975, 978–979, [“the person at [the business] kept telling the process server that Yan “was not in at this time.” This usage implied the person indeed knew Yan, that Yan was around generally, but that Yan was out at that moment. That person did not say something like ‘Yan does not work here anymore,’ or ‘Who is Yan?’”]) While the supplemental declarations in support of Defendant’s motion contradict these factual assertions, this Court is not required to accept self-serving evidence that contradicts the process server’s declaration. (Rodriguez, supra, 236 Cal.App.4th at p. 751.) In the end, Defendant’s evidence does not sufficiently rebut the presumption that Defendant was properly served in 2008 according to the registered process server’s statement.

Further, “[t]he evident purpose of Code of Civil Procedure section 415.20 is to permit service to be completed upon a good faith attempt at physical service on a responsible person....” (Ibid., emphasis added.) Service must be made upon a person whose “relationship with the person to be served makes it more likely than not that they will deliver process to the named party.” (Bein v. Brechtel-Jochim Group, Inc. (1992) 6 Cal.App.4th 1387, 1393.) The totality of evidence shows that the Jane Doe was a responsible person that, more likely than not, would deliver process to Defendant because of the knowledge of Defendant. (Hayes Decl. Exh. C, [“per contact, subject out of office at this time.”]) She was apparently in charge of the physical office that either employed Defendant or just recently employed Defendant. This is sufficient to satisfy the requirements of Code of Civil Procedure, section 415.20.

3. No Equitable Grounds Exist for Vacating Judgment

Defendant learned of the existence of this lawsuit and the default judgment against him in June 2017. (Hayes Decl. ¶18.) Defendant waited nine years to move to set aside the default judgment. There is no reasonable explanation for this delay for this Court to exercise its equitable powers to grant the requested relief. “Although the policy of the law is to favor a hearing on the merits of a case, courts are not required to set aside default judgments for defendants who flagrantly ignore the responsibility to present a defense. The burden of a party who has had a default entered against him is not limited to merely

articulating the existence of a meritorious case. The defendant must also demonstrate a satisfactory excuse for not responding to the original action in a timely manner.” (Cruz v. Fagor America, Inc. (2007) 146 Cal.App.4th 488, 503–504.) One “factor to be considered is whether defendant in the light of the circumstances known to him acted unreasonably in not filing the motion to set aside the default judgment earlier.” (Id. at p. 509.) Here, Defendant's nine-year delay in seeking relief is unreasonable, and demonstrates an utter lack of any diligence whatsoever (let alone any required “due” diligence). Simply put: This motion is too little, and too late under this Court’s inherent equitable powers.

III. Conclusion

This Court understands that the main thrust of Defendant’s motion for relief is based on CCP §473 (d) and based upon the contention that the default judgment at issue was “void” for failure to adequately serve the Summons & Complaint upon him. This Court would agree that any “void” judgment can be attacked at any time, and there is no timeliness or “due diligence” requirement.

Be that as it may, this Court expressly finds that service was properly effectuated upon Defendant, and that the default judgment was and is not “void.” Additionally, as also discussed supra, the default judgment is not “void” on its face. Hence, relief under CCP §473 (d) is not available in this case.

The only reason this Court has discussed CCP §473.5 is based simply on the fact that said section was expressly mentioned as an “alternative” statutory basis in the caption of the notice of motion.

Last, but not least, the final discussion on the lack of diligence or timeliness is based upon any request for this Court to utilize its inherent discretionary powers to grant the requested relief, other than these cited sections. Given the totality of the circumstances, including the clear and undisputed lack of diligence, this Court has concluded that using its inherent equitable powers to set aside the default would not be appropriate or warranted. See, e.g., *Rappleyea v. Campbell* (1994) 8 Cal.4th 975. [FN 1]

Accordingly, Defendant’s Motion to Vacate Default Judgment is DENIED WITH PREJUDICE.

IT IS SO ORDERED.

Dated: September 3, 2026 _____

Randolph M. Hammock

Judge of the Superior Court

FN 1 - This Court does acknowledge that in the Defendant’s Reply, he expressly disavows any request for relief under the “equitable discretion” of this Court. See, Reply, page 7, lines 13-17. Be that as it may, in order to make a complete record, this Court chose to discuss whether that option should be utilized in any case.